

TENTATIVE RULINGS FOR September 21, 2026
Department S29 - Judge Nicole Quintana Winter

This court follows California Rules of Court, rule 3.1308(a) (1) for tentative rulings. (See San Bernardino Superior Court Local Emergency Rule 8.) Tentative rulings for each law & motion will be posted on the internet (<https://www.sb-court.org>) by 3:00 p.m. or 7:00 p.m. on the court day immediately before the hearing.

If you wish to submit on the ruling, call the Court, check-in and state that you will be submitting on the Tentative, and your continued appearance is not necessary. However, you must check in. If both sides do not appear, the tentative will simply become the ruling. If any party submits on the tentative, the Court will not alter the tentative and it will become the ruling. If one party wants to argue, Court will hear argument but will not change the tentative. If the Court does decide to modify tentative after argument, then a further hearing for oral argument will be reset for both parties to be heard at the same time by the Court. This procedure is meant to minimize your waiting time in Court.

AMERICAN EXPRESS NATIONAL BANK

v.

KIMBERLY FRY
CIVSB2531854

Motion: **Motion for Summary Judgment**
Movant: Plaintiff American Express National Bank
Respondent: Unopposed

This is a collection action for a credit card debt. On October 28, 2025, Plaintiff American Express National Bank filed a judicial form complaint against Defendant Kimberly Fry. American Express alleges one cause of action for breach of contract - written. It seeks to recover \$14,824.44 in damages. Defendant (pro per) answered.

Now before the Court is American Express's motion for summary judgment. To date, Defendant has not opposed.

DISCUSSION

Statement of the Law

A summary judgment motion is a mechanism to cut through the parties' pleadings to determine if a trial on the facts is necessary. (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 843 (*Aguilar*).) Only the pleadings establish the grounds for granting or denying summary judgment. (*Tsemetzin v. Coast Federal Savings & Loan Assn.* (1997) 57 Cal.App.4th 1334, 1343.) Summary judgment is appropriate when there are no material facts in dispute as to any essential element of a cause of action. (Code Civ. Proc., § 437c.) When a plaintiff moves for summary judgment, the burden is to produce admissible evidence on each element of a cause of action entitling him or her to judgment. Once plaintiff has met that burden, the burden shifts to the defendant to show that a triable issue of material fact exists as to that cause of action or a defense thereto. (Code Civ. Proc., § 437c, subd. (p)(1)).

“In ruling on a motion, the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably drawn therefrom and must view such evidence and such inferences ‘in the light most favorable to the opposing party.’” (*Aguilar, supra*, 25 Cal.4th at p. 843, citations omitted.)

Analysis

A cause of action for damages for breach of contract is comprised of the following elements: (1) the contract, (2) plaintiff’s performance or excuse for nonperformance, (3) defendant’s breach, and (4) the resulting damages to plaintiff. (*Bushell v. JPMorgan Chase Bank, N.A.* (2013) 220 Cal.App.4th 915, 921.)

American Express submits the following facts. In January 2008, Defendant opened an American Express credit card account. The Cardmember Agreement governs the terms and conditions for use of the account. American Express sent Defendant a copy of the Cardmember Agreement, along with the physical credit card when Defendant opened the account. From time to time, American Express would update the Cardmember Agreement to comply with changes in the law or business climate. American Express sent Defendant the most recent Cardmember Agreement. (UFs 1-3.)

By keeping and using the account, Defendant agreed to be bound by the terms and conditions of the current Cardmember Agreement and any subsequent changes. Defendant used the account to pay for various goods and services and/or obtain cash advances. Pursuant to the Cardmember Agreement, Defendant was personally responsible for repaying American Express for all charges, advances, fees, and interest on the account by paying the account in full every month or by making regular monthly payments. (UFs 4-6.)

Defendant failed to make the required monthly payments on the account. The last payment was received on or before 9/21/2024. After the default, Plaintiff received voluntary payments totaling \$300.00. American Express maintained an accounting of all credits and debits on the account in the form of billing statements that it generated and stored on its internal network and also sent to the Defendant every month. (UFs 7-8.)

Pursuant to the Cardmember Agreement and state and federal law, Defendant had a reasonable period of 60 days to dispute any billing errors on the account by submitting a written dispute to American Express. There are no unresolved billing disputes on Defendant’s account. As Defendant has failed to make the required payments, the entire account balance of \$14,824.44 is now due and owing. (UFs 9-11.)

Defendant’s affirmative defenses, if any, fail to raise any triable issues of material fact to this action and therefore do not preclude the granting of summary judgment. (UF 12.) This last proposed fact is not a material fact but argument in support of summary judgment, consistent with the burdens on the motion. (Code Civ. Proc., § 437c, subd. (p)(1).)

American Express submits evidence in support of UFs 1-11 on the Declaration of Vivian Hinds, Assistant Custodian of Records. Hinds states that in her capacity as Assistant Custodian of Records, she is familiar with the credit card business operations and practices, in particular its recordkeeping computer systems, credit card agreements, and billing. Hinds establishes the foundation for admission of business records and sufficient foundation to testify to Defendant’s account status. (Hinds Decl. ¶¶ 2-8.) Hind’s testimony also supports the statements made in support of American Express’s breach of contract cause of action and Exhibits A through D referenced in Hinds declaration. The statements between closing date of 9/27/24 and 8/29/25,

support Hinds' statements regarding the default and payments. (Hinds Decl. ¶¶ 9-15 and Exhs. A-D.)

In UFs 1-11, American Express meets its initial burden by providing competent evidence that there was an agreement with Defendant, American Express performed by lending money on the card, and Defendant breached that agreement by not paying, which damaged American Express in the amount of \$14,824.44.

RULING

The Court rules as follows:

- (1) Grants Plaintiff American Express National Bank's motion for summary judgment that demonstrates damages in the amount of \$14,824.44, because American Express presents sufficient evidence in support of its breach of contract cause of action. (UFs 1-11 and Hinds Decl. ¶¶ 1-15, and Exhs. A-D.)
- (2) Orders Plaintiff American Express National Bank to provide to the Court Order(s) consistent with this ruling.
- (3) Orders Plaintiff American Express National Bank to provide formal notice of the Court's ruling.

Dated: September 23, 2026

Judge Quintana Winter

ROHAN SHARMA

v.

SARA LU

CIVSB2615336

Motion(s): Quash Service of Summons and Complaint

Movant(s): Defendant Sara Lu

Respondent(s): Plaintiff Rohan Sharma

PROCEDURAL/FACTUAL BACKGROUND

On May 5, 2025, Plaintiff Rohan Sharma filed a Complaint against Defendant Sara Lu.¹ On May 9, 2025, Plaintiff filed a First Amended Complaint. Plaintiff alleges that Plaintiff, a medical student at California University of Science and Medicine was sexually assaulted by Defendant where Defendant subjected Plaintiff to unwanted sexual touching without Plaintiff's consent. In addition, Defendant falsely accused Plaintiff of sexual assault to destroy Plaintiff's reputation and his future educational and career opportunities. (FAC ¶¶ 1-2.)

Plaintiff alleges the following causes of action: (1) sexual battery; (2) battery; (3) assault; (4) violation of Civil Code sections 51, 51.7, and 52.1; (5) violation of the gender violence statute – Civil Code section 52.4; (6) intentional infliction of emotional distress; (7) defamation – libel; (8) defamation – libel per se; (9) false light; and (10) civil harassment.

The action originally was filed in Kern County but was transferred to San Bernardino County after Plaintiff's motion to transfer was granted on March 9, 2026.

Now before the Court is Defendant's motion to quash service of the summons based on improper service. Defendant asserts that on August 14, 2025, Plaintiff allegedly attempted to serve Defendant by substituted service by leaving the summons at 3198 Madden Way, Dublin, CA 94568, but that property was not Defendant's dwelling house, usual place of abode, or usual place of business. Defendant asserts she does not reside there, was not a member of the household, and did not authorize any person at that address to accept service on her behalf.

A Proof of Service (POS) of Summons is not on file, although the opposition asserts that it was filed on August 14, 2025. The copy attached to Plaintiff's counsel's declaration demonstrates an August 14, 2025, file date while the case was pending in Kern County. (Scolnick Decl. Exh. 2.) Similarly, Defendant attaches a copy with the same file date. (Lu Decl. Exh. A.) The POS of Summons states that on August 14, 2025, Defendant was served by substituted service on "Mr. Lu (Who refused to provide first name) – Father" with a physical description provided. A declaration of diligence and mailing also is attached. It provides for two prior attempts at service in which the process server was informed Defendant is in New York for school and a third attempt resulting in substituted service as described above. The mailing was to the Madden Way property. The POS of Summons is signed by a registered process server. (Scolnick Decl. Exh. 2.)

Defendant submits a declaration in which she states that it is her understanding the summons and complaint was left at her parents' home on August 14, 2025, and she was not personally served. She states that she did not reside at the Madden Way address on August 14, 2025; on that date her residence was in New York City, New York. She also states that she has

¹ **PLEASE NOTE:** The Court is aware that Defendant has a case pending against Plaintiff and is appearing in that case by a pseudonym.

not maintained the Madden Way address as her home or usual place of abode since August 2018. She states that she did not authorize her parents or any other person at the address to accept service on her behalf. (Lu Decl. ¶¶ 2-6.)

DISCUSSION

Legal Standard

The service of summons is the process by which the court acquires jurisdiction over a defendant in a civil action. Without substantial compliance with the statutory requirements for service, personal jurisdiction is not conferred even if the defendant has notice of the litigation. (*MJS Enterprises Inc. v. Superior Court* (1984) 153 Cal.App.3d 555, 557.)

A defendant on or before the last day to plead may serve and file a notice of motion to quash service of summons on the ground that the court lacks jurisdiction. (Code Civ. Proc., § 418.10, subd. (a)(1).) The Court may extend this deadline for “good cause.” (*Ibid.*)

When service is challenged by a motion to quash, it is the plaintiff’s burden to prove by preponderance of the evidence the validity of the service and the court’s jurisdiction over the defendant by proving the facts requisite to an effective service. (*Summers v. McClanahan* (2006) 140 Cal.App.4th 403, 413, citation omitted.)

In general, the filing of a proof of service creates a rebuttable presumption that service was proper. But the presumption arises only if the proof of service complies with applicable statutory requirements. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1441-1442.) Evidence Code section 647 provides: “The return of a process server registered pursuant to Chapter 16 (commencing with Section 22350) of Division 8 of the Business and Professions Code upon process or notice establishes a presumption, affecting the burden of producing evidence, of the facts stated in the return.”

The effect of such a rebuttable presumption is “to require the trier of fact to assume the existence of the presumed fact unless and until evidence is introduced which would support a finding of its non-existence, in which case the trier of fact shall determine the existence or non-existence of the presumed fact from the evidence and without regard to the presumption.” (Evid. Code, § 604.)

Analysis

Timeliness. Plaintiff argues that the motion is untimely because it was not made “on or before the last day of his or her time to plead or within any further time that the court may for good cause allow.” (Code Civ. Proc., § 418.10, subd. (a).) Plaintiff states the POS was filed on August 14, 2025. While the Register of Actions does not show it as being filed, the copies of the POS of Summons that both Plaintiff and Defendant provide show it was filed in Kern County on August 14, 2025. (Scolnick Decl. Exh. 2; Lu Decl. Ex. A.) It is unclear why it was not part of the Kern County record filed in this case.

In this case, the Court chooses to exercise its discretion to hear the motion.

Purported Appearance in Kern County. Plaintiff also argues that at the hearing on his motion to transfer, defense counsel appeared purportedly under a special appearance, based on Defendant’s claim that Plaintiff had not been adequately served. (Scolnick Decl. ¶ 6 and Exh. 5.) Plaintiff attaches a transcript in support of Plaintiff’s contention that the Court implicitly ruled that Defendant had been adequately served. (Scolnick Decl. Exh. 5 – Hearing Transcript (2/20/26) at pp. 27:25-28:13.) Plaintiff relies on the following:

MR. SCOLNICK: Yes, your Honor. Thank you. Implicit in the court's ruling, if I understand it correctly, is that substitute service has been made. I'd just like to have that noted –

THE COURT: Yeah, you know, that's something that hasn't formally been challenged. And so, yes, that appears to be the position now, and if you were trying to take a default and somebody were to try to set that aside or whatnot and really get into the details of that, that's kind of -- like you said, it's a component of the court's ruling this morning but it's not the primary issue.

But, yes, implicitly in my ruling, you know, as a tentative ruling that's been accomplished. It doesn't mean there can't be any further litigation on that. Does that make sense? It's sort of a tangential issue to today's ruling.

(Ibid.)

Plaintiff asserts that Defendant did not challenge that finding for nearly six months and that on March 9, 2026, the Kern County Court issued an order granting the motion to transfer. (Scolnick Decl. Exh. 6.) On May 28, 2026, the case was docketed in San Bernardino County with Case No. CIVSB2615356.

After the Court's review of the transcript, the Court finds that the Kern County Superior Court did not make a finding that service was properly effected. Instead, the Kern County Superior Court noted that service has not been challenged. While the Court noted implicitly ruling that service has been accomplished, it also stated that it doesn't mean it cannot be further litigated. In addition, when defense counsel requested the case be sealed, the Court stated: "You're making a special appearance this morning, not a general appearance, and so I'm not sure you have standing to even do that, you know." (Scolnick Decl. Exh. 5, p. 28:22-26.) Therefore, this Court finds that there is no showing that Defendant's appearance was treated as a general appearance or waived Defendant's right to challenge service.

In addition, the February 20, 2026, minutes from the hearing on the transfer motion do not make any specific finding as to Defendant receiving proper service of the summons and complaint; the minutes also state that defense counsel specially appeared. The written order that was entered likewise does not make any such finding. (Scolnick Decl. Ex. 6.)

Therefore the Court does not find that the Kern County transfer ruling adjudicated service.

Substituted Service. With respect to an individual, proper service of the summons and complaint may be effected by personal service, i.e., hand delivering a copy of the summons and complaint (Code Civ. Proc., § 415.10) or where personal service cannot be effected on the individual with reasonable diligence, by substitute service. (Code Civ. Proc., § 415.20, subd. (b).) Code of Civil Procedure section 415.20, subdivision (b), provides for substitute service, stating:

(b) If a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left.

Service of a summons in this manner is deemed complete on the 10th day after the mailing.

Code of Civil Procedure section 417.10, subdivision (a), provides that proof that a summons was served on a person within this state shall be made: “If served under Section 415.10, 415.20, or 415.30, by the affidavit of the person making the service showing the time, place, and manner of service and facts showing that the service was made in accordance with this chapter. The affidavit shall recite or in other manner show the name of the person to whom a copy of the summons and of the complaint were delivered, and, if appropriate, the person’s title or the capacity in which the person is served, and that the notice required by Section 412.30 appeared on the copy of the summons served, if in fact it did appear.”

After review of the evidence present, the Court finds that Defendant has presented sufficient evidence to overcome the presumption of valid service. Here, Defendant states under penalty of perjury that she does not reside at and has not maintained the Madden Way address as her residence, home, or usual place of abode since August 2018. She states that at the time of service, she resided in New York City. (Lu Decl. ¶¶ 2-3.) She also states that she did not authorize her parents or anyone else to accept service at that address. (Lu Decl. ¶ 4.) With this evidence, Plaintiff cannot continue to rely on the August 2025 POS of Summons in support for proper service and Plaintiff does not present sufficient evidence to demonstrate substituted service was properly effected at the Madden Way address on August 14, 2025. The fact that a vehicle is registered in Defendant’s and her father’s name (Scolnick Decl. ¶ 3), is not sufficient to demonstrate proper service at the Madden Way address, especially where the Declaration of Diligence demonstrates that on several occasions the process server was informed that Plaintiff lived in New York.

As part of the opposition, Plaintiff presents the declaration of Joseph Prendergast in support of Plaintiff’s contention that service was properly effected on Plaintiff in New York City in September 2026.² Defendant is correct in arguing on reply that Plaintiff’s evidence of “completed substitute service” in New York in September 2026 does not demonstrate proper service based on the August 14, 2025, POS of Summons, which is at issue in this motion. In addition, this Court notes that there is no indication that Mr. Prendergast is registered as a process server in California and there is no POS of Summons for September 2026, on file with this Court. Therefore, the Court will not consider any evidence or arguments related to service in New York in September 2026.

As for Plaintiff’s arguments and evidence of Plaintiff’s counsel’s discussions with defense counsel about this action and requesting that defense counsel accept service, which request was denied, actual notice of the action alone is not a substitute for proper service and is not sufficient to confer jurisdiction. (*American Express Centurion Bank v. Zara* (2011) 199 Cal.App.4th 383, 392.) Therefore, the Court continues to find a lack of proper service.

Finally, to the extent Plaintiff’s opposition requests the Court order service by publication, Plaintiff is required to file the appropriate application or motion.

² Service in New York also was purportedly effected by substituted service by attaching documents to the door of the superintendent of the apartment building, even though the person who answered the door of Apartment 1C that Plaintiff’s investigator identified as Plaintiff’s residence informed the investigator on several occasions that Lu does not live in the apartment. Two different addresses for the apartment building were also provided. (Prendergast Decl. ¶¶ 3-4, 7.) The investigator also purportedly left the documents with a receptionist at a hospital where Plaintiff volunteers, and also mailed the documents to the workplace and purported residence. (Prendergast Decl. ¶¶ 5-8.)

Based on the above, I recommend the Court grant Defendant's motion to quash the August 14, 2025 service of summons and Complaint on Defendant.

RECOMMENDATION

GRANT Defendant Sara Lu's motion to quash service of the summons and complaint as it relates to the August 14, 2025 Proof of Service of Summons. Defendant Lu submitted sufficient evidence to rebut the presumption of proper service and Plaintiff failed to present sufficient evidence to establish substituted service was properly effected as stated on the August 14, 2025 Proof of Service of Summons.

RULING

Court rules as follows:

1. Grants Defendant's motion to quash service of the summons and complaint as it relates to the August 14, 2025, Proof of Service of Summons;
2. Plaintiff's request for an order granting service by application is denied without prejudice;
3. Defendant is ordered to submit to the Court an order consistent with the Court's ruling; and
4. Orders Defendant, as the prevailing party, to serve formal notice of the Court's ruling.

Dated: September 24, 2026,

Judge Quintana Winter